

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GWENDOLYN SHETTY,

Petitioner

VS.

SACHINDEV SHETTY,

Respondent

) Case Number: FDI-24-799942

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE:CHILD SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Gwendolyn Shetty and Respondent Sachindev Shetty. They share one minor child: Montara Brooke Shetty (DOB: 01/13/18).
- 2) On January 23, 2026, Petitioner filed a Request for Order (RFO) seeking child support and attorney fees.
- 3) On January 23, 2026, Petitioner filed a Declaration of Counsel in Support of Petitioner's Request for Attorney's Fees Pursuant to Family Code §§2023, 271.
- 4) On January 23, 2026, Petitioner filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Head of Household, 1 exemption
 - b. Other Party's Income: \$24,615.00/month.
 - c. Average Monthly Income: \$11,022.00/month.
 - d. Union Dues: \$55.00/month.
 - e. Required Retirement Payments: \$448.00/month.

- f. Medical, hospital, dental and other health insurance premiums: \$771.00/month.
 - g. Cash and checking accounts: \$302,003.00
 - h. Total Expenses: \$21,459.00/month.
 - i. Attorney Fees Paid: \$362,227.00/month.
 - j. 78% timeshare with child.
- 5) On February 4, 2026, Petitioner filed a Proof of Electronic Service of the RFO (and all other supporting documents).
- 6) On April 8, 2026, Respondent filed a Responsive Declaration in which he asks this Court to deny the relief requested by Petitioner.
- 7) On April 8, 2026, Respondent filed an Income and Expense Declaration, which includes the following information:
- a. Filing Status: Married Filing Separately, 3 exemptions
 - b. Other Party's Income: \$10,833.00/month.
 - c. Average Monthly Income: \$.00/month.
 - d. Dividends/interest: \$2083.00/month.
 - e. Income from Self-Employment: \$0.00
 - f. Cash and checking accounts: \$12,600.00
 - g. Mortgage Interest: \$5450.00/month.
 - h. Property Taxes: \$1900.00
 - i. Total Expenses: \$15,165.85/month.
 - j. Attorney Fees Paid: \$196,701.12/month.
 - k. 20% timeshare of minor child.

B. Findings and Order

- 1) Petitioner's Request for Family Code section 2030 attorney's fees is DENIED. Respondent does not have the ability to pay any of Petitioner's attorney's fees. It also appears that the disparity in access to funds favors Petitioner. Per the Income and Expense Declarations, Respondent has \$12,500 in "cash and checking accounts," while Petitioner has \$302,003 in "cash and checking." If anything, the disparity in access to funds would support an award of attorney fees payable to Respondent (not Petitioner). As such, each party shall bear their own attorney's fees and costs.

1 2) Petitioner's request for family Code section 271 sanctions is DENIED. The Court does not find
2 that Petitioner met her burden of showing that the Respondent engaged in any sanctionable
3 conduct.

4 3) The Court GRANTS the parties request for guideline child support. In accordance with the
5 XSpouse calculation attached hereto and incorporated herein, Mother is obligated to pay Father
6 child support in the amount of \$13.00 per month, effective May 1, 2026. All payments shall be
7 made by the 1st of every month.

8 4) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

9 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).